

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN
TRUCKING ASSOCIATIONS, INC., *Complainant*

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION
INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC;
CMA CGM S.A.; COSCO SHIPPING LINES CO. LTD.;
EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC NO.
011982; HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK A/S;
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.;
YANG MING MARINE TRANSPORT CORP.; AND
ZIM INTEGRATED SHIPPING SERVICES, *Respondents*.

DOCKET NO. 20-14

Served: July 23, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER GRANTING DEPARTMENT OF JUSTICE MOTION FOR LEAVE TO FILE AMICUS BRIEF

On June 20, 2024, the Antitrust Division of the United States Department of Justice (“Division”) filed a motion seeking leave to file a brief *amicus curiae*, along with the proposed brief. No opposition has been received to the motion.

The Division submits the proposed amicus brief “to clarify two issues that have arisen in this matter: (1) the Division’s business review procedure; and (2) what weight, if any, the Commission should give to a business review letter that the Division issued in 2014 to independent equipment providers FlexiVan Leasing, Inc. and Direct ChassisLink, Inc.” Motion at 1. The Division asserts that good cause exists, arguing that the submission will not prejudice either party, will not delay the proceedings, and will benefit the public interest. Motion at 1-2.

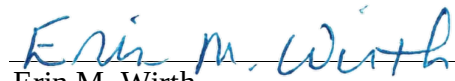
The Commission’s most recent order in this proceeding addressed the standard for admitting amicus briefs.

An *amicus curiae* brief, or “friend of the court” brief, is intended to assist in the Commission by providing a different perspective or legal arguments the parties may not offer. The Commission looks to three factors in deciding whether to allow an amicus brief to be filed: (1) whether the brief is limited to questions of law or policy; (2) whether the requestor has an interest in the proceeding; and (3) whether considering their brief is desirable.

Order Holding in Abeyance Petitions for Reconsideration and Granting Leave to File Amicus Brief at 6 (citing 46 C.F.R. § 502.73(a), (b)). The “Commission has broad discretion in deciding whether to grant leave for an amicus brief.” *In re: Vehicle Carrier Services*, Docket No. 16-01, 1 F.M.C. 2d 175, 177 (Order Granting Motion for Leave to File Amicus Brief) (FMC Aug. 30, 2018).

The Division’s proposed brief is limited to questions of law or policy, specifically, the Division’s procedures and policies regarding business review letters. The Division has an interest in the proceeding and clarifying the issues it addresses. Moreover, the Division is uniquely situated to provide information about its business review letters. In addition, no objection was received and the motion will not delay the proceeding. Therefore, considering the brief is desirable.

Accordingly, the Division’s motion for leave to submit its *amicus curiae* brief is **GRANTED**.


Erin M. Wirth
Chief Administrative Law Judge